

An Act

ENROLLED HOUSE
BILL NO. 1937

By: Kannady and Lowe of the
House

and

Howard of the Senate

An Act relating to schools; amending Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2025, Section 6-401), which relates to student communication; defining term; requiring a corroborated report in order to place school personnel on administrative leave during an investigation; removing requirement that incidents be noted in employee files; providing for reinstatement under certain circumstances; requiring inclusion of finding in employee file; providing an effective date; and declaring an emergency.

SUBJECT: Schools

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2025, Section 6-401), is amended to read as follows:

Section 6-401. A. As used in this section:

1. "Electronic or digital communication" includes, but is not limited to, emails, text messages, instant messages, direct messages, social media messages, messages sent through software applications, and any other electronic or digital means of communication; ~~and~~

2. "School personnel" means teachers, coaches, administrators, school bus drivers, or any other persons employed full-time or part-time by a public school or charter school; and

3. "Student" means a person enrolled in a public school or charter school in this state receiving primary or secondary education to obtain a standard high school diploma or high school equivalency diploma. Student does not mean a person who holds a standard high school diploma or high school equivalency diploma.

B. School personnel engaging in electronic or digital communication with an individual student shall include the student's parent or legal guardian in any electronic or digital communication, unless such communication is on a school-approved platform and related to school and academic communications.

C. Exceptions to the requirement in subsection B of this section may be made in case of an emergency as determined by the local school board, subject to subsequent notification to the parent or legal guardian. School personnel shall make reasonable efforts to use school-approved platforms, systems, or applications that allow automatic inclusion of parents or legal guardians in communications with students.

D. Schools shall provide training, developed by the State Department of Education, for school personnel on the student communication requirements of this section.

E. Any school personnel who is ~~reported to be~~ the subject of a corroborated report of being in violation of subsection B of this section shall be put on administrative leave while the school district investigates the incident and notifies the board of education. If the investigation finds that no misconduct occurred, ~~the school personnel shall be reinstated and the incident shall not~~ be noted in the school personnel's employee file. If the school personnel was placed on administrative leave during the investigation of the incident but the investigation finds that no misconduct occurred, the school personnel shall be reinstated and the school personnel's employee file shall include a note of the finding of no misconduct. If the investigation finds misconduct occurred, the school personnel shall be disciplined according to the school district board of education's policy, up to and including termination of employment, and the incident shall be reported to law

enforcement pursuant to Section 1210.163 of ~~Title 70 of the Oklahoma Statutes~~ this title.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 10th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 5th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____